

Forest Act, 2019

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Forest Act, 2076".

(2) This Act shall come into force on the eighth day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Trophy" means the living or dead body of a wildlife or any part of its body that can be identified, and the word also denotes any substance from the body of a wildlife or any object prepared from a mixture of such substance.

(b) "Inter-Provincial Forest" means a national forest that extends across more than one province, is geographically and naturally connected, and is ecologically interrelated.

(c) "Consumer Group" means a consumer group formed pursuant to Section 31 for the conservation, promotion, management, and utilization of a forest.

(d) "Leasehold Forest" means a national forest managed pursuant to Section 26.

(e) "Non-Timber Forest Product" means all goods of biological origin, including herbs and wildlife or wildlife trophies, other than timber and firewood produced from trees located in a forest or originating from a forest or produced from trees outside a forest.

(f) "Mark" means a stamp, sign, or symbol affixed to timber or standing trees.

(g) "Division Forest Office" means a Division Forest Office under the Provincial Government.

(h) "Divisional Forest Officer" means the head of a Division Forest Office appointed by the Government of Nepal pursuant to prevailing law.

(i) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(j) "Religious Forest" means a national forest entrusted pursuant to Section 28.

(k) "Private Forest" means a forest planted, raised, or conserved on private land owned by any person pursuant to prevailing law.

(l) "Province Forest Director" means the head of the Province Forest Directorate.

(m) "National Forest within a Province" means a national forest within the concerned province, separate from an inter-provincial forest.

(n) "Province Ministry" means the ministry of the provincial government dealing with forest matters.

(o) "Ministry" means the Ministry of Forests and Environment of the Government of Nepal.

- (p) "National Forest" means a Government Managed Forest, Forest Conservation Area, Community Forest, Partnership Forest, Religious Forest, Leasehold Forest, National Forest within a Province, or Inter-Provincial Forest.
- (q) "Forest" means an area wholly or partially covered by trees or shrubs.
- (r) "Forest Produce" means the following produce located in, found in, or brought from a forest:-
- (1) Timber produce,
 - (2) Non-timber forest produce, or
- Amended by the Act to Amend Some Nepal Acts Relating to Investment Facilitation, 2081. (3) Rocks, stones, and soil.
- (s) "Forest Conservation Area" means a forest conservation area declared pursuant to Section 15.
- (t) "Forest Boundary Mark" means posts or signboards of wood, stone, cement, or any other object placed to demarcate the boundary of a national forest, and the word also denotes forest boundary marks marked on a map prepared after land survey and measurement pursuant to prevailing law.
- (u) "Forest Management Regime" means the regime adopted for the management of a national forest.
- (v) "Forest Area" means an area occupied by grassland, pasture, snow-covered or non-snow-covered barren mountain, road, pond, lake, wetland, river, stream, riverbed, fallow or public land, surrounded by or within a forest that is within or outside forest boundaries, excluding private ownership rights and as otherwise provided by prevailing law.
- (w) "Environmental Screening" means Initial Environmental Examination (IEE) and Environmental Impact Assessment (EIA) conducted pursuant to prevailing law.
- (x) "Environmental Services" means the services obtained from the ecological system of a forest area and the benefits derived therefrom as follows:-
- (1) Carbon services,
 - (2) Conservation of biological diversity,
 - (3) Watershed and water cycle system,
 - (4) Ecotourism,
 - (5) Other goods, services, and benefits as prescribed.
- (y) "Department" means the Department of Forests and Soil Conservation under the Ministry.
- (z) "Government Managed Forest" means a national forest managed by the Government pursuant to Section 14.
- (aa) "Armed Forest Guard" means an armed forest guard holding various positions in the Armed Forest Guard Service formed pursuant to Section 46.
- (ab) "Partnership Forest" means a national forest managed in partnership among the Division Forest Office, the local level, and forest users pursuant to Section 23.

(ac) "Community Forest" means a national forest handed over to a consumer group pursuant to Section 18.

(ad) "Local Level" means a Rural Municipality or a Municipality.

Chapter-2

Provisions Relating to Land Ownership, Land Use, and Boundary Delineation of National Forests

3. Land Ownership of National Forests: (1) The land ownership of the national forest area shall vest in the Government of Nepal.

(2) Without a decision of the Council of Ministers of the Government of Nepal, the land use of the national forest area shall not be changed, nor shall the right of enjoyment of the national forest be provided to anyone, nor shall it be mortgaged, exchanged, or in any other manner transferred.

(3) Other provisions relating to changing the land use of the national forest area and providing the right of enjoyment shall be as prescribed. 4. Delineation of Boundaries of National Forests: The Government of Nepal shall delineate the boundary of the national forest within a province and the inter-provincial forest. 5. Power to Acquire Land: (1) While demarcating the boundary of a national forest, if necessary for the conservation of such forest, the Government of Nepal may include and demarcate public land or private land of any person located within that forest or adjacent to the boundary of that forest, along with the house, hut, shed, and other physical structures built on such land, within the forest boundary.

(2) The private land of any person included within the forest boundary pursuant to sub-section (1), along with the house, hut, shed, and other physical structures built on such land, shall be acquired in accordance with the prevailing law relating to land acquisition, and compensation or reimbursement therefor shall be provided.

(3) Other provisions relating to the acquisition of land falling within the forest boundary shall be according to the prevailing law relating to land acquisition. 6. Deletion of Records of Private Land: (1) Where private land of a person is included within a national forest pursuant to this Chapter, after acquiring such land and determining compensation or reimbursement, the Divisional Forest Officer shall send a letter to the Land Revenue Office and the concerned local level for deletion of the record, providing details of the area, plot number, and boundary of such land.

(2) Upon receipt of such letter pursuant to sub-section (1), the Land Revenue Office shall, within seven days, delete the land revenue record of such land, and the concerned local level shall delete the tax record of such land, and provide information thereof to the Division Forest Office.

(3) The details of the deletion of the record pursuant to sub-section (2) shall be sent by the Division Forest Office to the Ministry and the Province Ministry. 7.

Land Not to Be Registered: (1) No person shall register or cause to register land within a national forest. (2) If any person has got land within a national forest registered, no claim shall lie on such land based on such registration, and such registration shall be deemed automatically void. (3) If prior to the commencement of this Act, any person had unlawfully registered any part of a national forest, such registration shall also be automatically void after the commencement of this Act. (4) For the deletion of the record of land whose registration has been voided pursuant to sub-sections (2) and (3), the Divisional Forest Officer shall immediately send a letter to the Land Revenue Office for deletion of the land revenue record and to the concerned local level for deletion of the tax record. Upon receipt of such letter, the Land Revenue Office shall, within seven days, delete the land revenue record of such land, and the concerned local level shall delete the tax record of such land, and provide information thereof to the Division Forest Office. (5) The

details of the deletion of the record pursuant to sub-section (4) shall be sent by the Division Forest Office to the Ministry and the Province Ministry. 8. No Person to Acquire Rights in National Forest: No person shall acquire any kind of right or privilege in a national forest, except by obtaining a lease, deed, or certificate pursuant to this Act, or by otherwise acquiring a right or privilege. 9. Prohibition of Entry into Forest Area: (1) If deemed necessary from the perspective of forest conservation, a Divisional Forest Officer may, by publishing a public notice, prohibit entry into the whole or any part of a national forest for a specified period. (2) While prohibiting entry pursuant to sub-section (1), boundaries may be demarcated and a path may be left for human passage, and such demarcated path may be used subject to the conditions mentioned in the notice published pursuant to sub-section (1). (3) Notwithstanding anything written in sub-section (2), no domestic livestock of any kind shall be allowed to enter a forest area where entry is prohibited. (4) While prohibiting entry pursuant to sub-section (1), provision for regulating entry shall be made as prescribed for project operators who have obtained permission from the Government of Nepal. 10. Power to Implement Land Use Plan for National Forest: The Government of Nepal may implement or cause to implement a land use plan as prescribed in a specific forest area for sustainable forest conservation, management, and maintaining a balance between environment and development. 11.

Management of National Forests: (1) The Government of Nepal shall, in consultation with the Provincial Government, prepare an integrated or province-wise strategic plan for the management of the national forest within a province and the inter-provincial forest. (2) Subject to the strategic plan pursuant to sub-section (1), the Provincial Government may make necessary arrangements for the conservation, development, and utilization of the national forest within the province and the inter-provincial forest. (3) The Divisional Forest Officer shall, subject to this Act, prepare a strategic plan for the national forest within his/her jurisdiction in a participatory manner, and shall get it approved as prescribed and implement it. (4) The Government of Nepal may manage any area within a national forest as a national plan relating to forests. 12. No Settlement or Resettlement within Forest Area: (1) No forest area with trees shall be used for settlement or resettlement. (2) In land settled or resettled prior to the commencement of this Act under the then-prevailing law relating to forests, the trees that existed at the time of providing such land shall remain under the ownership of the Government of Nepal, and such trees shall be removed as prescribed. (3) A person who removes the trees referred to in sub-section (2) contrary to this Act shall be punished as if for an offense in a national forest. 13. Management of Wetland Area: (1) The Government of Nepal shall conserve, promote, develop, and manage wetland areas within the national forest area. (2) In the wetland area pursuant to sub-section (1), activities relating to ecotourism development may be carried out as prescribed. Chapter-3 Provisions Relating to Government Managed Forest 14. Management of Government Managed Forest: (1) The Divisional Forest Officer may demarcate any part of a national forest and manage it as a Government Managed Forest, subject to the strategic plan approved by the Government of Nepal. (2) Notwithstanding anything written in sub-section (1), national forests other than Forest Conservation Areas, Community Forests, Partnership Forests, Religious Forests, and Leasehold Forests shall be managed as Government Managed Forests. (3) For the management of a Government Managed Forest, a work plan shall be approved and implemented as prescribed. (4) The Government of Nepal shall prepare a strategic plan for inter-provincial forests. Chapter-4 Provisions Relating to Forest Conservation Area 15.

Forest Conservation Area: (1) Subject to Section 11, the Ministry may, in consultation with the Province Ministry, by publishing a notice in the Nepal Gazette, demarcate any part of the following national forests and the related peripheral area, prepare a special work plan, and declare it as a Forest Conservation Area:- (a) Of national and international environmental, ecological, scientific, or cultural importance, (b) Found sensitive from the perspective of watershed conservation, (c) Necessary for the conservation and management of

forests, vegetation, and wildlife outside protected areas, or (d) Found suitable for the development of ecotourism. Explanation: For the purpose of this Section, "Peripheral Area" means the community, area, and natural resources interrelated with the forest. (2) The work plan approved pursuant to sub-section (1) shall be implemented by the Division Forest Office. 16. Management of Forest Conservation Area: (1) In the national forest area within a Forest Conservation Area, one or more forest management regimes may be adopted based on the zonal situation. (2) Notwithstanding anything written elsewhere in this Act, while preparing the work plan of a national forest being managed under other forest management regimes located within a Forest Conservation Area, it shall be prepared subject to the work plan pursuant to sub-section (1) of Section 15. (3) The distribution of dividends obtained from the management of the Forest Conservation Area pursuant to sub-section (2) shall be according to the prevailing law relating to the National Natural Resources and Finance Commission. (4) The Government of Nepal may declare a Forest Conservation Area as a biological corridor for wildlife. 17. Areas Converted into Forest Conservation Area: (1) Protected forests existing at the time of the commencement of this Act shall be deemed automatically converted into Forest Conservation Areas after the commencement of this Act. (2) Upon conversion into a Forest Conservation Area pursuant to sub-section (1), the existing forest management regime at the time of the commencement of this Act shall not be deemed to be adversely affected. Chapter-5 Provisions Relating to Community Forest 18.

Handover of Community Forest: (1) If a consumer group formed pursuant to Section 31 wishes to manage any part of a national forest as a Community Forest, with the right to develop, conserve, utilize, manage, independently determine the price of forest produce, and sell and distribute it, the group shall submit an application along with a work plan to the Division Forest Office. (2) The Divisional Forest Officer shall examine the work plan pursuant to sub-section (1) and, if found appropriate, approve it. (3) Upon approval of the work plan pursuant to sub-section (2), the Divisional Forest Officer shall provide a certificate relating to forest handover to the consumer group pursuant to sub-section (1) in the format as prescribed. (4) For the purpose of sub-section (1), the Divisional Forest Officer may provide necessary technical and other assistance to form a consumer group and prepare a work plan with the participation of consumers. (5) Based on the desire and need of the consumer group, in order to make forest management work effective, the consumer group may prepare or amend the work plan of the Community Forest as needed, in consultation with the concerned local level. Before implementing the work plan so prepared or amended, the consumer group shall inform the Divisional Forest Officer thereof. (6) If it appears that the work plan prepared by the consumer group or the amendment made thereto pursuant to sub-section (5) may cause a significant adverse impact on the environment, the Divisional Forest Officer may, within thirty days from the date of receiving information of such work plan or amendment, direct the consumer group not to implement such work plan or amendment, and it shall be the duty of the consumer group to comply with such direction. (7) The consumer group may operate forest enterprises specified in the work plan approved by the Division Forest Office and ecotourism programs as prescribed. (8) Pursuant to sub-section (7), the consumer group may use the forest area for ecotourism development as prescribed. (9) The consumer group may, by agreement, allocate any part of the Community Forest to consumers below the poverty line for income generation through the development, conservation, and utilization of the Community Forest, as prescribed. 19.

Community Forest May Be Taken Back: (1) If the consumer group fails to carry out activities according to the work plan in the Community Forest handed over pursuant to Section 18, or commits any act that causes a significant adverse impact on the environment, or fails to comply with the conditions required to be observed under this Act and the rules made under this Act, the Divisional Forest Officer may decide to cancel the registration of such consumer group and take back such Community Forest, as prescribed. Provided that,

before deciding to cancel the registration of such consumer group and take back the Community Forest, such consumer group shall be given a reasonable opportunity to present its defense. (2) A forest consumer group dissatisfied with the decision made by the Divisional Forest Officer pursuant to sub-section (1) may lodge a complaint with the Province Forest Director within thirty-five days. The decision made by the Province Forest Director on such complaint shall be final. 20. Community Forest May Be Re-handed Over: (1) If the decision made to take back a Community Forest pursuant to sub-section (1) of Section 19 is canceled by the Province Forest Director upon complaint lodged pursuant to sub-section (2) of the same Section, the Divisional Forest Officer shall re-hand over such Community Forest to the same consumer group. (2) If no complaint is lodged under sub-section (2) of Section 19 against the decision made under sub-section (1) of that Section, or if such complaint is lodged and the decision is upheld, the Divisional Forest Officer shall, after completing the process pursuant to Section 18, reorganize the consumer group and hand over that Community Forest. 21. Punishment for Acting Contrary to Work Plan: (1) If a consumer does any act contrary to the work plan in a Community Forest, the concerned consumer group may impose a fine on him/her, and if any loss or damage is caused by such act, an amount equal to the loss may be recovered as compensation. (2) If the consumer group itself is unable to take action pursuant to sub-section (1), the group may recommend to the Division Forest Office for action, and upon such recommendation, the Divisional Forest Officer may impose such fine. (3) The fact that a fine has been imposed pursuant to sub-section (1) shall not be deemed to prevent action against such person under prevailing law. 22.

Expenditure Required for Forest Development: (1) Out of the annual income earned by the consumer group according to the work plan, at least twenty-five percent shall be spent on the development, conservation, and management of the forest, and out of the remaining amount, at least fifty percent shall be spent on poverty alleviation, women empowerment, and enterprise development activities in coordination with the concerned local level. (2) The amount remaining after spending pursuant to sub-section (1) shall be used for the benefit of the consumer group. Chapter-6 Provisions Relating to Partnership Forest 23. Partnership Forest: (1) The Province Ministry may, on the recommendation of the Divisional Forest Officer, subject to Section 11, manage any part of a Government Managed Forest as a Partnership Forest, in partnership among the Division Forest Office, the local level, and forest users, as prescribed, for the following purposes:- (a) To support the economy by developing and sustainably managing the forest, (b) To involve traditional users located near or far from the forest area in forest conservation activities and to arrange for the supply of forest produce to such users, (c) To enhance the productivity of the forest area and utilize vacant areas, (d) To conserve and promote biodiversity and watershed areas, (e) To improve the livelihood of users. (2) For the management of a Partnership Forest, the Divisional Forest Officer shall, in consultation with the local level and the Partnership Forest User Group as prescribed, prepare a work plan and submit it to the Province Forest Directorate, and the Province Forest Director may approve such work plan. (3) The responsibility for implementing the work plan approved pursuant to sub-section (2) shall lie with the Division Forest Office, the local level, and the Partnership Forest User Group pursuant to Section 24. (4) If the partners pursuant to sub-section (1) fail to carry out activities according to the work plan, or commit any act that causes a significant adverse impact on the environment, or fail to comply with the conditions required to be observed under this Act and the rules made under this Act, the Province Ministry may terminate such Partnership Forest management regime, and such forest shall automatically be managed as a Government Managed Forest. Provided that, before deciding to cancel the registration of such user group and take back the Partnership Forest, such user group shall be given a reasonable opportunity to present its defense. 24. Formation of Partnership Forest User Group: For the development and conservation of a Partnership Forest and for managing the forest produce received by users from such forest, the concerned traditional users

falling within the Partnership Forest management area may form a Partnership Forest User Group. 25.

Use and Sale-Distribution of Forest Produce from Partnership Forest: (1) The distribution of timber, firewood, and non-timber forest produce produced from a Partnership Forest shall be as prescribed. (2) The Partnership Forest User Group may, giving priority to internal consumption, set aside only the remaining forest produce to be sent outside the group from the forest produce received by the group from the implementation of the Partnership Forest management work plan. (3) Out of the amount received from the sale and distribution of forest produce received by the user group from the Partnership Forest, at least twenty-five percent shall be spent on the development, conservation, and management of the forest, and out of the remaining amount, at least fifty percent shall be spent on poverty alleviation, women empowerment, and enterprise development activities in coordination with the concerned local level. (4) The amount remaining after spending pursuant to sub-section (3) shall be spent for the benefit of the user group.

Chapter-7 Provisions Relating to Leasehold Forest 26. Provision of Leasehold Forest: (1) The Government of Nepal may, for the following purposes, provide any part of a national forest that has deteriorated status as a Leasehold Forest to any organized institution established pursuant to prevailing law, by agreement as prescribed:- (a) To produce raw materials required for forest-based industries, (b) To increase the production of forest produce through plantation and to sell, distribute, or utilize it, (c) To operate agroforestry crops or livestock farms to conserve and develop the forest, (d) To operate insect, reptile, and wildlife farms or gardens to conserve and develop the forest, (e) To operate ecotourism business to conserve and develop the forest. Explanation: For the purpose of this Section, "Forest with Deteriorated Status" means a forest with less than twenty percent crown coverage. (2) Notwithstanding anything written in sub-section (1), the Division Forest Office may prepare a work plan for poverty alleviation of people living below the poverty line and provide forest area as a Leasehold Forest to a group of such people to operate income-generating programs that conserve and develop the forest. 27.

Leasehold Forest May Be Taken Back: (1) If any party to the agreement or any other person does any act contrary to the work plan in a Leasehold Forest or causes loss or damage to the forest, the Divisional Forest Officer may decide to take back such Leasehold Forest as prescribed, and the person, organization, or community doing such act shall be punished as if for an offense in any other national forest. Provided that, before deciding to take back such Leasehold Forest, the concerned party shall be given a reasonable opportunity to present its defense. (2) A party dissatisfied with the decision made by the Divisional Forest Officer to take back the Leasehold Forest pursuant to sub-section (1) may lodge a complaint with the Director General of the Department within thirty-five days from the date of the decision. (3) The decision made by the Director General of the Department regarding the complaint lodged pursuant to sub-section (2) shall be final. (4) Notwithstanding anything written elsewhere in this Section, if any act detrimental to forest conservation is done in the forest area provided pursuant to sub-section (2) of Section 26, the Government of Nepal may decide to take back such Leasehold Forest at any time, and the forest so taken back shall be managed as a Government Managed Forest. Chapter-8 Provisions Relating to Religious Forest 28. Religious Forest: (1) The Divisional Forest Officer may hand over the national forest area surrounding a religious site that has existed since time immemorial to any religious body, group, or community established pursuant to prevailing law for the conservation of such site and surrounding forest as a Religious Forest. (2) The mere fact that such forest has been handed over for conservation pursuant to sub-section (1) shall not be deemed to transfer rights in the name of such religious body, group, or community. 29. Use of Forest Produce in Religious Forest: (1) Forest produce located in a Religious Forest may be used only for religious purposes by the concerned religious body, group, or community. Provided that, forest produce obtained during the construction and operation of development plans within the Religious Forest area may be sold and distributed

in coordination with the Division Forest Office and the local level. (2) While using forest produce pursuant to sub-section (1), trees shall not be felled in a manner that causes a significant adverse impact on the environment, or causes public loss or damage, or may cause soil erosion in a watershed area. 30.

Religious Forest May Be Taken Back: (1) If the concerned religious body, group, or community does any act contrary to Section 29 in the Religious Forest entrusted pursuant to Section 28, or fails to carry out the required activities in the Religious Forest, or fails to comply with matters required to be observed under this Act or the rules made under this Act, the Divisional Forest Officer may decide to take back such Religious Forest. Provided that, before deciding to take back the Religious Forest, the concerned religious body, group, or community shall be given a reasonable opportunity to present its defense. (2) A person, religious body, group, or community dissatisfied with the decision made by the Divisional Forest Officer pursuant to sub-section (1) may lodge a complaint with the Province Forest Director within thirty-five days from the date of receipt of notice. (3) The decision made by the Province Forest Director regarding the complaint received pursuant to sub-section (2) shall be final. Chapter-9 Provisions Relating to Formation of Consumer Group 31.

Formation of Consumer Group: (1) Consumers concerned with a forest who wish to conserve, develop, and manage that forest and utilize forest produce for collective benefit may form a consumer group as provided in this Act. (2) Consumer groups formed pursuant to sub-section (1) shall be registered with the concerned Division Forest Office as prescribed. (3) For registration pursuant to sub-section (2), the concerned consumer group shall submit an application along with its constitution. (4) The consumer group shall, within three months of the end of each fiscal year, submit an annual report of its activities, including financial details and the condition of the forest as prescribed, to the concerned local level and the Division Forest Office. 32. **Consumer Group to be an Organized Institution:** (1) A consumer group shall be a self-governing and organized institution with perpetual succession. (2) The consumer group shall have its own separate seal. (3) The consumer group may, like an individual, acquire, possess, sell, or otherwise manage movable and immovable property. (4) The consumer group may, like an individual, sue and be sued in its own name. 33.

Fund of Consumer Group: (1) The consumer group shall have its own separate fund. (2) The following amounts shall be deposited in the fund pursuant to sub-section (1):- (a) Grant amounts received from the Government of Nepal, Provincial Government, and local level, (b) Grant or assistance amounts received from any domestic person or institution, (c) Amounts received by the consumer group from the sale and distribution of forest produce, (d) Membership fees of the consumer group and amounts received from fines imposed by the consumer group. (3) Expenses to be incurred on behalf of the consumer group according to the work plan shall be borne from the fund pursuant to sub-section (1). (4) If loss of life or property of a member of such group occurs due to wildlife in the forest managed by the consumer group, relief shall be provided to the affected person from the fund pursuant to sub-section (1). (5) The operation of the fund pursuant to sub-section (1) shall be as prescribed. 34. **Power to Operate Forest Enterprise and Ecotourism Programs:** (1) The consumer group may, by adopting the procedure as prescribed, operate forest enterprises and ecotourism programs specified in the approved work plan on its own or in partnership with the local level, organizations, the private sector, or cooperatives. Explanation: For the purpose of this Section, "Forest Enterprise" also denotes wildlife farming. (2) The mere fact that a partnership has been made in the operation pursuant to sub-section (1) shall not be deemed to transfer the liability of the consumer group. (3) While establishing and operating a forest enterprise pursuant to sub-section (1), a work plan shall be prepared and operated based on the standards specified by the Ministry. (4) Notwithstanding anything written in sub-sections (1) and (2), if during the operation of ecotourism programs, physical infrastructure is constructed contrary to prevailing law and forest work plan, resulting in a change of land use of the forest area, the group or organization causing or allowing such change shall be liable to action under this Act. (5) Other provisions

relating to granting permission for operating forest enterprises and ecotourism programs pursuant to sub-section (1) and operating such programs shall be as prescribed. Chapter-10 Provisions Relating to Forest on Private and Public Land 35.

Registration of Private Forest: (1) Any person or institution wishing to register a private forest shall submit an application to the concerned local level with a recommendation from the Division Forest Office or Sub-Division Forest Office. (2) Upon receipt of an application pursuant to sub-section (1), after necessary inquiry, the concerned local level shall register the private forest and issue a certificate. (3) The local level shall inform the concerned Division Forest Office about the registration of the private forest pursuant to sub-section (2). (4) Private forests under this Act shall not be nationalized. 36. Management of Private Forest: (1) The owner of a private forest may develop, conserve, and manage the private forest, and may utilize forest produce or determine the price and sell and distribute it. (2) Upon the request of the owner of a private forest, the Division Forest Office or Sub-Division Forest Office may provide necessary technical and other assistance for the work pursuant to sub-section (1). (3) If it is necessary to collect and transport forest produce from a private forest or private homestead for commercial purposes, approval shall be obtained from the concerned local level. (4) Notwithstanding anything written in sub-section (3), if it is necessary to collect and transport forest produce from one local level to another local level for commercial purposes, approval shall be obtained from the concerned Division Forest Office. (5) If it is necessary to collect and transport forest produce from one local level to another local level within a district for domestic purposes, approval shall be obtained from the local level from which the collection and transport is to be done, and if it is necessary to collect and transport forest produce from one district to another district, approval shall be obtained from the Division Forest Office of the district from which the collection and transport is to be done. (6) The Government of Nepal may provide facilities as prescribed to the private forest owner. (7) Any person, institution, group, or community may, subject to prescribed standards, engage in agroforestry, herbal farming, and wildlife farming. 37.

Provisions Relating to Forest Development on Public Land: (1) Subject to this Act, the local level may develop, conserve, and manage forests on public land and may utilize and sell-distribute forest produce. (2) For the work pursuant to sub-section (1), the Division Forest Office or Sub-Division Forest Office shall provide necessary technical and other assistance to the local level. (3) Trees planted along roadsides, canals, and paths, and trees providing shade on paths, and trees planted at rest stops, water spout sources, religious sites, or other similar sensitive places may be felled or removed after completing the procedure as prescribed. 38. Development and Management of Urban Forest: (1) The local level may develop and manage urban forest in urban areas and settlements within its jurisdiction, in places such as public roads and parks, on its own or in partnership with any organization or the private sector. (2) The Division Forest Office or Sub-Division Forest Office shall provide necessary technical assistance for the development of the urban forest established pursuant to sub-section (1). (3) The forest produce of the urban forest established pursuant to sub-section (1) may be used by the concerned local level as prescribed. Chapter-11 Provisions Relating to Unclaimed Timber 39. Management of Unclaimed Timber: (1) Unless any person proves their right thereto, the ownership of timber brought by a river or stream, stranded, lodged, or submerged, or timber in an unclaimed state shall vest in the Provincial Government. (2) The management of timber pursuant to sub-section (1) shall be as prescribed. 40. Proceedings upon Claim: (1) If any person claims ownership of timber in an unclaimed state pursuant to Section 39, along with proof, and if the claim of such person appears admissible, such timber shall be handed over to him/her. (2) Other provisions relating to claims on unclaimed timber and proceedings thereof shall be as prescribed. Chapter-12 Provisions Relating to Development Projects 41. Land Use of Forest Area Not to be Changed: No part of a national forest shall be used in a

manner that changes the land use of the forest area. Provided that, this provision shall not apply in the case of a forest area provided to any project for infrastructure development pursuant to a decision of the Government of Nepal. 42.

Explanation: For the purpose of this Section, "Nationally Priority Project" means a plan or project specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(2) Notwithstanding anything written in sub-section (1), if a province or local level, while operating any development plan or project, has no alternative other than using any part of a national forest, and if the environmental study conducted under prevailing law shows that operating such plan or project will not cause a significant adverse impact on the environment, it may, for the purpose of obtaining approval to use such part of a national forest for operating such plan or project, decide through the Provincial Council of Ministers that it is a priority project of the province or local level and request the Government of Nepal.

(3) Upon receipt of a request pursuant to sub-section (2), the Council of Ministers of the Government of Nepal may, subject to this Section, grant approval to use any part of a national forest for operating such plan or project.

(4) While allowing the use of any part of a national forest for the operation of a plan, project, or industry that has obtained approval pursuant to sub-section (1), the amount required as prescribed for arranging private land at least equal to the forest area to be used by such plan, project, or industry, for planting and raising trees on such land for five years, for planting trees at a rate of five times the number of trees to be removed during project operation and raising them for five years, shall be deposited in the Forest Development Fund pursuant to Section 45.

(5) Notwithstanding anything written elsewhere in this Section, for a plan, project, or industry operated by the Government of Nepal, a Provincial Government, a local level, or an entity majority-owned by the Government of Nepal, the amount required as prescribed for planting trees on an area at least equal to the forest area to be used and raising them for five years shall be deposited in the Forest Development Fund pursuant to Section 45.

(6) Notwithstanding anything written in sub-section (4), in the case of electricity transmission or distribution and communication service projects, if towers must be placed in any part of a national forest, an amount equal to ten percent of the amount determined pursuant to

(?) If he sells or in any way hands over to another person any government or other's arms or ammunition under his charge,

(?) If he absconds with arms or ammunition taken for his own use or held under his charge,

(?) If he directly or indirectly aids terrorist activities,

(?) If he provides or attempts to provide security-related information and news to unauthorized persons, institutions, or groups, or abets another to do so.

(?) An armed forest guard committing any of the following offenses shall be punished with imprisonment for a term ranging from two years to twelve years, depending on the gravity of the offense:-

(?) If, whether on duty or not, after knowing or having reasonable grounds to know that a person is an armed forest guard of a higher rank or an authorized officer related to security, he uses or attempts to use criminal force,

(?) If, knowing of a conspiracy or attempt for armed rebellion, he fails to report or inform the officer of a higher rank as soon as possible,

(?) If he in any way assists persons who poach forest produce or wildlife trophies or who commit forest-related offenses in collusion,

(?) If he knowingly allows an accused person under his charge or control to escape or assists in his escape.

(?) An armed forest guard committing any of the following offenses shall be punished with imprisonment for a term up to two years, depending on the gravity of the offense:-

(?) If he consumes intoxicating substances during duty hours, or disobeys the order of his commander, or leaves the camp without permission,

(?) If he acquires membership of any political organization or party, or participates in a rally or demonstration organized for a political purpose,

(?) If he misuses, negligently loses, damages, or destroys arms, ammunition, vehicles, cash, or goods in kind under his charge,

(?) If he absconds with property under his charge.

(?) If an armed forest guard in any manner loots or causes loss or damage to government, public, or private property, he shall be punished with an additional imprisonment of up to two years in addition to the punishment prescribed by the prevailing law.

Chapter-15

Offenses and Punishment

49. Offense: Unless otherwise provided in this Act or the Rules made under this Act, if any person commits or causes to commit, or attempts to commit, any of the following acts, he shall be deemed to have committed an offense under this Act:-

(?) If he registers or causes to register land within a national forest contrary to Sub-section (1) of Section 7,

(?) If he enters an area prohibited under Section 9,

(?) If he does or causes to do any act of clearing national forest, or plowing, digging, mining, cultivating, building roads or other infrastructure, constructing houses or huts, operating a business, or encroaching upon land in a forest area,

(?) If he sets fire to a national forest or does any act that may cause a fire,

(?) If he allows livestock to enter or graze within a prohibited forest area,

(?) If he removes, transports, sells, or distributes forest produce from a national forest area, or removes or steals forest produce kept at a depot,

(?) If he cuts trees or plants, lopps branches, extracts resin or bark, or in any way damages trees or plants in a national forest area,

(?) If, while cutting, felling, skidding, or taking trees outside the forest area with authorization, he negligently damages any other forest produce,

- (?) If he extracts stones, gravel, sand, or soil from a river flowing from a forest area, burns lime or shells, or makes or collects other finished goods from these materials, or extracts or collects minerals,
- (?) If he violates the conditions of a permit obtained for taking forest produce and causes damage to forest produce,
- (?) If he exports forest produce the export of which is prohibited,
- (?) If he uproots, moves, alters, erases, or damages forest boundary marks,
- (?) If he forges stamps or marks, or alters, damages, or erases government stamps or marks affixed to timber or standing trees,
- (?) If he cuts, breaks, uproots, or in any other way damages plants in a nursery or planted trees,
- (?) If he damages or steals posts, wire fences, or other such property in a nursery or plantation area,
- (?) If he hunts, keeps, transports, or sells or distributes wildlife trophies,
- (?) If a forest-based industry keeps forest produce contrary to the prevailing law,
- (?) If an office bearer or member of a consumer group misappropriates fund money in the name of the group's interest, or does any act contrary to the group's constitution and work plan,
- (?) If he does any other act contrary to this Act and the Rules made under this Act. 50.

If forest produce has been removed or damaged while committing such an offense, the person shall also be liable to the punishment for that.

(4) A person committing an offense under clause (?) of Section 49 shall be punished with recovery of the amount of damage and imprisonment for up to three years or a fine of up to sixty thousand rupees or both.

(5) A person committing an offense under clause (?) of Section 49 shall be fined at the following rate for each livestock:-

- (?) If sheep or goat type, fifty rupees to five hundred rupees,
- (?) If elephant, one thousand rupees to five thousand rupees,
- (?) If other livestock, one hundred rupees to one thousand rupees.

(6) A person committing an offense under clause (?), (?), (?), (?) or (?) of Section 49 shall be punished with confiscation of the forest produce related to the offense and the following punishment:-

- (?) If the loss is up to one thousand rupees, a fine of up to one thousand rupees,
- (?) If the loss is more than one thousand rupees up to five thousand rupees, imprisonment for up to one month or a fine according to the loss or both,
- (?) If the loss is more than five thousand rupees up to fifty thousand rupees, imprisonment for up to three months or a fine according to the loss or both,
- (?) If the loss is more than fifty thousand rupees up to one lakh rupees, imprisonment for up to six months or a fine according to the loss or both,
- (?) If the loss is more than one lakh rupees up to five lakh rupees, imprisonment for up to one year or a fine

according to the loss or both,

(?) If the loss is more than five lakh rupees, whatever the amount, imprisonment for up to two years or a double fine of the loss or both.

(7) A person committing an offense under clause (?) of Section 49 shall be punished with confiscation of the forest produce related to the offense and imprisonment for up to three years or a double fine of the loss or both.

(8) A person committing an offense under clause (?) or (?) of Section 49 shall be punished with imprisonment for up to one year or a fine of up to twenty thousand rupees or both.

(9) A person committing an offense under clause (?) of Section 49 shall be fined up to five hundred rupees per plant, and if the same offense is repeated, the person shall be punished with imprisonment for up to one year or a fine of up to twenty thousand rupees or both for each subsequent offense depending on the quantum of the offense.

(10) A person committing an offense under clause (?) of Section 49 shall be punished with recovery of the loss and imprisonment for up to six months or a fine of up to ten thousand rupees or both.

(11) A person committing an offense under clause (?) of Section 49 shall be punished according to the prevailing law on wildlife conservation.

(12) A person committing an offense under clause (?) of Section 49 shall be punished with an additional fine of up to two lakh rupees in addition to the punishment for such offense.

(13) A person committing an offense under clause (?) of Section 49 shall, if loss is caused, be punished with recovery of the loss and imprisonment for up to one year or a fine of up to twenty thousand rupees or both.

(14) A person committing an offense under clause (?) of Section 49 shall, if loss is caused, be punished with recovery of the loss and imprisonment for up to six months or a fine of up to ten thousand rupees or both.

51. Punishment for seizing or arresting with intent to harass: If any employee or security personnel engaged in forest-related work, without reasonable cause, seizes goods or arrests any person out of spite or with intent to harass, such employee shall be fined up to fifty thousand rupees. 52. Punishment for obstructing the discharge of duty: If any person obstructs a government employee in the discharge of his official duty under this Act, such person shall be punished with a fine of up to five thousand rupees or imprisonment for up to three months or both. 53. Punishment for helping an offender to escape: A person who helps an offender under this Act to escape shall be liable to the same punishment as the offender. 54. Punishment for abetment or collusion: A person who abets or colludes in committing an offense under this Act shall be liable to half the punishment prescribed for the offender. 55. Punishment for attempt to commit an offense: A person who attempts to commit an offense under this Act shall be liable: if the attempt relates to an offense concerning protected wildlife under the prevailing law on wildlife conservation, to the same punishment as the offender; and if the attempt relates to other offenses, to half the punishment prescribed for the offender. Chapter-16 Investigation and Procedure of Offenses

56. Taking necessary action to prevent offense: If there is suspicion that a person is about to commit an offense punishable under this Act, or if a person is found in the act of committing an offense, an employee or security personnel engaged in forest-related work shall make arrangements to prevent such offense and may use necessary force for that purpose. 57.

Special powers: (1) While arresting an offender involved in a forest or wildlife offense under this Act, within or outside the forest area, if there is a mob causing obstruction to prevent the arrest or, even after arrest, to rescue and take away the offender, or if a situation arises where the life of the arresting person is at risk and it becomes unavoidable to use a weapon, then, by order of the Divisional Forest Officer, an employee or security personnel deployed for forest security may fire below the knee. (2) Even if a person has cultivated land in a national forest area or built a house or hut on such land, the Divisional Forest Officer or a Forest Officer or Forest Assistant designated by him may remove such cultivation or demolish the house or hut, and may also confiscate the crops sown in such area. (3) Notwithstanding anything contained in Sub-section (2), the provisions of that sub-section shall not affect any other punishment under this Act. 58. Power to arrest: (1) If a person needs to be arrested in the course of investigation of any offense under this Act, the investigating officer shall submit an application for permission to arrest, stating the reason and details identifying such person, to the adjudicating officer. (2) If the reason for arrest appears reasonable from the application under Sub-section (1), the adjudicating officer may grant permission to issue an arrest warrant. (3) A person for whom an arrest warrant has been issued under Sub-section (2) shall be arrested by the investigating officer, forest employee, or security personnel and produced before the adjudicating officer within twenty-four hours, excluding the travel time. (4) Notwithstanding anything contained in Sub-section (1), if the person committing the offense is not arrested immediately and there is reasonable cause to believe that such person may escape or abscond or destroy evidence or proof, or if a person absconding in connection with an offense is found, or if a person is found in the act of committing an offense, the investigating officer, forest employee, or security personnel may immediately issue an emergency arrest warrant, arrest such person, and produce him along with the arrested person before the adjudicating officer for approval.

Provided that if the person to be arrested is a woman, a female forest employee or female security personnel shall be utilized as far as possible.

(5) If the investigation regarding a person arrested in connection with an offense cannot be completed within twenty-four hours and it appears necessary to keep him in custody for continuation of the investigation, the investigating employee shall produce him before the adjudicating officer and keep him in custody only with the permission of the adjudicating officer. While seeking permission accordingly, the charge against the person in custody, its basis, the reason for keeping him in custody for further investigation, and if his statement has been recorded, the substance of the statement shall be clearly stated.

(6) If permission to keep in custody is requested under Sub-section (5), the adjudicating officer shall examine the relevant documents, consider whether the investigation is proceeding satisfactorily, and if it appears that the investigation is being conducted satisfactorily, may grant permission to keep in custody for a maximum of twenty-five days, in installments. 59. Power of search: (1) If there is reasonable cause to believe that an offense punishable under this Act has been committed, a forest technical employee of at least Non-Gazetted Second Class or an employee of the rank of Assistant Sub-Inspector of Police may search any place in accordance with the prevailing law. Explanation: For the purpose of this section, "place" means a permanent or temporary building or shed, and the word also denotes open land, tents, boats, and various types of vehicles.

(2) A person conducting a search under Sub-section (1) shall, before entering the place, give notice to the owner of the place to be searched or the person then using the place, stating the reason for the search, and shall then conduct the search.

(3) When conducting a search under Sub-section (1), it shall be done in the presence of at least one office

bearer or member of the concerned local level and at least two witnesses.

(4) If it is necessary to search a house where people reside, if there are women in the house, notice and opportunity to leave shall be given.

(5) Nothing in this section shall authorize the searching employee to enter a house where people reside between sunset and sunrise. 60.

Power to seize forest produce and related goods: (1) If there is reliable reason to believe that an offense under this Act has been committed during the storage or transport of any forest produce, any employee or security personnel engaged in forest-related work may seize such forest produce and the weapons, boats, vehicles, and livestock related to the offense. (2) If any forest produce or goods are seized under Sub-section (1), the employee or security personnel making the seizure shall prepare a detailed statement of the seized forest produce or goods, give a receipt thereof to the concerned person, and mark, measure, and inspect such forest produce or goods, and submit a report to the Divisional Forest Office or Sub-Divisional Forest Office as soon as possible. (3) Weapons, boats, vehicles, or livestock related to the offense, other than the forest produce seized under Sub-section (1), may be released to the owner on a bond to produce them at the place and time specified by an employee of at least Non-Gazetted Second Class or a security personnel of equivalent rank, in the presence of at least one office bearer or member of the concerned local level and at least two local persons. 61. Provision relating to submission of evidence: (1) Forest produce recovered in relation to an offense under this Act, or tools and other means used in committing such offense, shall be submitted as evidence to the adjudicating officer. (2) Notwithstanding anything contained in Sub-section (1), if such recovered forest produce, tools, and other means cannot be submitted as evidence to the adjudicating officer, placing such evidence in the custody of the nearest forest office and submitting the inventory thereof shall be deemed equivalent to submitting the evidence. (3) The adjudicating officer may, regarding the place where evidence is kept under Sub-section (2), depute a subordinate to take a report and initiate action. 62.

Investigation and diary of the case: (1) The investigation and inquiry of a case relating to an offense punishable with imprisonment up to one year under this Act shall be conducted by an employee of the provincial government designated by the provincial government by notification in the provincial gazette. (2) The investigation and inquiry of a case relating to an offense punishable with imprisonment for more than one year under this Act shall be conducted by an employee of the Government of Nepal designated by the Government of Nepal by notification in the Nepal Gazette. (3) If for the same offense, some persons are liable to imprisonment of less than one year and some persons are liable to imprisonment of more than one year, the investigation and inquiry of that case shall be conducted by the employee under Sub-section (2). (4) If, upon completion of investigation and inquiry of an offense under this Act, it appears that a case should be filed, the investigating officer shall submit the file containing the evidence and proof related to the investigation along with his opinion to the concerned Government Attorney's Office for a decision on whether to prosecute or not. (5) Upon receiving the file under Sub-section (4), the concerned Government Attorney's Office shall, if the case is not to be prosecuted, state the same, and if the case is to be prosecuted, state the person to be prosecuted, the charge against him, the punishment, and the claim to be made in the indictment, and return the file to the investigating officer within the limitation period for filing the case. (6) Notwithstanding anything contained in Sub-section (5), if upon studying the received file, the Government Attorney's Office finds that further investigation is necessary, it shall identify the subject matter requiring further investigation and return the file to the investigating officer with the basis and reason therefor. (7) If a file is received for further investigation on any matter under Sub-section (6), the investigating officer shall conduct further investigation on that matter and re-submit the file to the Government Attorney's Office with the

proposed charge and claim for filing the case. (8) After receiving the file under Sub-section (7), the concerned Government Attorney's Office shall decide whether to prosecute or not under Sub-section (5) and return the file to the investigating officer. (9) After receiving the file with the decision to prosecute from the Government Attorney's Office under Sub-section (5) or (8), the investigating officer shall file the case in the name of the Government of Nepal before the adjudicating officer. 63. Government of Nepal to be the plaintiff: The case under this Act shall be prosecuted by the Government of Nepal. 64.

Management of seized goods: (1) Regarding forest produce, tools, weapons, vehicles, livestock, and other goods seized in connection with an offense punishable under this Act, whose owner is not traced, the investigating officer shall post a notice in a conspicuous place giving a seven-day period for any claimant to come and claim the goods. (2) If a claim is made regarding the goods under Sub-section (1), it shall be submitted to the adjudicating officer for decision. (3) If no claim is made regarding the goods under Sub-section (1), or if a judgment is made that the claim is not tenable, such goods shall belong to the Government of Nepal. 65. Perishable forest produce, goods, and livestock may be auctioned: (1) Regarding forest produce, goods, or livestock seized in connection with an offense punishable under this Act that are perishable or in a condition where preservation is not possible, the Divisional Forest Officer may, with the permission of the adjudicating officer, bring them to the nearest forest office or safe place and auction them. (2) The amount obtained from the auction under Sub-section (1) shall be deposited in a suspense account, to be dealt with as determined at the time of judgment in that case. 66. Provision relating to preliminary hearing: (1) Notwithstanding anything contained in the prevailing law, if a person arrested under this Act and charged with an offense punishable with imprisonment of one year or more appears to be guilty from the evidence immediately available, or if there is a reasonable basis to infer guilt from such evidence, such person shall be kept in custody for preliminary hearing and proceedings. (2) In the case of persons other than those mentioned in Sub-section (1), they may be released on bail upon furnishing a cash deposit or personal surety up to the maximum limit of imprisonment or fine that may be imposed, and if such deposit or surety cannot be furnished, they shall be kept in custody for the preliminary hearing of the case. Provided that a repeat offender liable to imprisonment for more than six months shall be kept in custody for the preliminary hearing of the case. (3) When an accused is kept in custody for preliminary hearing under this section, he shall not be kept in custody for a period exceeding the maximum limit of punishment that may be imposed on him. 67.

Adjudicating officer: (1) Cases under this Act punishable with a fine of up to two lakh rupees or imprisonment for up to one year or both shall be tried and disposed of by the Divisional Forest Officer of the Government of Nepal. (2) While trying and disposing of cases under Sub-section (1), the procedure under the Special Court Act, 2059 shall be followed. (3) In the case of an offense punishable with a fine of up to one thousand rupees under this Act, an employee of the requisite rank for investigation may, upon arrest of a person, prepare a record, immediately impose a fine, and release him. (4) A party dissatisfied with the decision under Sub-section (1) or (3) may appeal to the concerned District Court within thirty-five days from the date of receipt of notice of the decision. 68. Seized goods to be confiscated: (1) If a person is found to have committed an offense punishable under this Act, the pack animals, tools, weapons, livestock, and other means recovered in connection with such offense shall be confiscated. (2) Pack animals, tools, weapons, livestock, and other means recovered in the course of investigation of an offense punishable under this Act may, with the permission of the adjudicating officer, be sold by auction and the proceeds kept in a deposit account until the final disposal of the case. (3) Notwithstanding anything contained in Sub-section (1), if it does not appear from the investigation that a person other than the offender knowingly used or allowed the use of such vehicle to assist the offender, or if the pack animal is valued at less than fifty thousand rupees, it shall not be confiscated, and the person doing such act shall be liable to an additional punishment of up to

fifty thousand rupees in addition to the punishment under this Act. 69. Management of confiscated plants and plant resources: The Government of Nepal or the provincial government may make available to a public institution or body, or destroy, any plant or plant resource confiscated in an offense under this Act, for educational and scientific study, research, medicinal use, or religious purposes. Chapter-17 Miscellaneous 70. Plantation and supply of forest produce: The Government of Nepal may make arrangements as prescribed to promote plantation activities and to supply timber and firewood needed for religious acts, disaster management, house construction, cremation, and essential development and construction works. 71. Power to designate checkpoints: The Government of Nepal may, by notification in the Nepal Gazette, designate checkpoints for the import and export of forest produce. 72.

Forest-based industry to furnish information: An industry using forest produce as raw material shall, before commencing operation, inform the concerned Divisional Forest Office about its commercial viability and the goods and services to be produced. Provided that this provision shall not apply to enterprises registered as micro and cottage enterprises under the prevailing law on industrial business. 73. Inter-level coordination: (1) To make effective the implementation of this Act, the Government of Nepal may form an inter-level coordination committee comprising representatives of the Ministry, the concerned Ministry of the provincial government, and the concerned local level. (2) Other provisions relating to the committee under Sub-section (1) shall be as prescribed. 74. Provision relating to study and research: (1) The Ministry may make available any forest area to any institution conducting research work related to forests for research purposes. Provided that, in the case of study and research bodies under the Ministry, the Department may make available the forest area. (2) An institution to which a forest area is made available under Sub-section (1) shall utilize such area in a manner that ensures its conservation and development. (3) Provisions relating to making forest areas available under this section and other matters concerning study and research shall be as prescribed. 75. Power to declare forest seed garden: The Government of Nepal may declare any part of a national forest as a forest seed garden. 76. Agroforestry system may be adopted: An agroforestry system may be adopted in land within a forest area as prescribed, without changing the land use. Explanation: For the purpose of this section, "agroforestry" means a system of integrated cultivation of multi-year tree species along with grain crops, fruits, fodder crops, fish farming, or animal husbandry on the same land. 77. Power to impose prohibition: The Government of Nepal may, by notification in the Nepal Gazette, impose a prohibition on the collection, felling, consumption, transport, sale, distribution, or export of specified forest produce for the purpose of conserving biodiversity, any species, or the environment. 78. Protection for acts done in good faith: No government employee shall be personally liable for the exercise of powers conferred by this Act if done in good faith. 79. Reward for informers: An institution or person who provides information about an impending offense under this Act or assists in arresting an offender shall be given ten percent of the fine imposed on the offender as a reward. 80.

Monitoring and evaluation: (1) The Ministry may from time to time monitor and evaluate the conservation, development, and use of forests under this Act. (2) The provincial ministry shall from time to time monitor and evaluate forest management within the province and also make the report thereof available to the Ministry. (3) The Divisional Forest Officer shall monitor and evaluate forests managed through various forest management systems within the district and submit a report thereof to the Ministry and the provincial ministry. (4) Other provisions relating to monitoring and evaluation shall be as prescribed. 81. Delegation of powers: The Government of Nepal may delegate some of its powers under this Act to any subordinate body or officer for exercise. 82. Matters to be governed by prevailing law: Matters specified in this Act shall be governed by this Act, and other matters shall be governed by the prevailing law. 83. Power to make rules: The Government of Nepal may make necessary Rules for the implementation of this Act. 84. Power to make

procedures or directives: The Government of Nepal may make and implement necessary procedures or directives for the implementation of this Act and the Rules made under this Act. 85. Act implementation review: Five years after the commencement of this Act, the Ministry shall review the impact of the implementation of this Act. 86. Repeal and saving: (1) The Forest Act, 2049 is hereby repealed. (2) Acts and actions done under the Forest Act, 2049 shall be deemed to have been done under this Act. 87. Transfer of cases: Cases, petitions, reports, and related files pending before the District Forest Officer under the Forest Act, 2049 shall be transferred to the adjudicating officer under Section 67.